

# What the law lets this website say

A vape shop website in Ontario sits under three stacked regimes, and the strictest one wins. This brief sets out what each layer actually requires, answers the owner's question about the logo, and lists what in the current Alfie's build would not survive an inspection.

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PREPARED 19 AUG 2026    LAW CURRENT TO AUG 2026    NOT LEGAL ADVICE

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## THE OWNER'S QUESTION

CAN THE LOGO CONTAIN A VAPOUR CLOUD OR A VAPE DEVICE?

**No statute names clouds or devices — but the owner's rule is the right call, and it should go further than the logo.**

There is no line in the *Tobacco and Vaping Products Act* or the *Smoke-Free Ontario Act* that says "no clouds in logos." Anyone telling you it's a black-letter rule is wrong. What's actually true is that four separate provisions all push in that direction at once, and a plain wordmark is the only mark that clears all four without argument.

## Why the four provisions land on the same answer

1. **A pictorial mark turns the mark itself into advertising.** A logo becomes a "vaping product-related brand element" the moment it's attached to vaping products. If that element *depicts the product*, then every surface it lands on — favicon, storefront, OG image, invoice, the shop van — starts to read as vaping-product advertising, and advertising drags in the mandatory health-warning format below (20% of the surface, bordered, black-on-white, attributed to Health Canada). A text-only wordmark keeps the mark out of that bucket entirely. This is the strongest practical argument and the one worth giving Alfie.
2. **Ontario bans product promotion visible from outside the store.** Under the SFOA a registered specialty vape store may display and promote vapour products only *entirely within* the premises, and since 1 July 2020 those displays must not be visible from outside at any time of day. A storefront sign showing a device or vapour is promotion visible from the sidewalk. A wordmark naming the business is not. [SFOA 2017 · O. Reg. 268/18](#)
3. **Federal retail signage is prescribed down to the colour.** A retail establishment may have exactly *one* sign indicating vaping products: rectangular, no larger than 3,600 cm<sup>2</sup>, black characters on a white background, stating only availability and price, with nothing designed to draw attention. Decorative device or cloud artwork is outside that permission. [VPPR s. 6-7](#)

4. **Anything youth-adjacent is prohibited outright.** Advertising is banned if there are reasonable grounds to believe it *could be* appealing to young persons — a low bar, and the regulator's judgment, not yours. Stylised swirls, cartoon puffs and candy-bright device art are precisely the register Health Canada has been enforcing against. [TVPA s. 30.1](#)

### The absolute one: no people, characters or animals. Anywhere.

Depicting a person, character or animal — real or fictional — is *deemed* a testimonial or endorsement, and testimonials are prohibited "however displayed or communicated." A mascot is out. So is a stock photo of a customer, a founder portrait, a hand holding a device, and an illustrated face. This one has no wiggle room. [TVPA s. 30.21\(1\)–\(2\)](#)

### So extend the owner's rule to

- The favicon and any app icon — same mark, same reasoning.
- Open Graph and Twitter card images, which render outside any age gate.
- Hero illustration, section dividers, loading states, 404 art.
- Any device silhouette used as a decorative motif, however abstract.

Wordmark, typography, and colour do all the identity work. That is not a creative compromise — it is why nearly every compliant Ontario vape retailer looks the way it does.

## THE STACK

### Three regimes, and the strictest one governs

FEDERAL · HEALTH CANADA

#### TVPA and its regulations

What may be said, shown, packaged and sold anywhere in Canada. Governs the content of the website.

PROVINCIAL · MINISTRY OF HEALTH

#### Smoke-Free Ontario Act, 2017

Who may sell, to whom, from where, and what may be displayed. Governs whether the shop can carry the catalogue at all.

LOCAL · SMDHU & CITY OF BARRIE

#### Health unit and municipal

Registration, inspection, test shopping, staff training, signage checks, zoning and business licence.

## THRESHOLD QUESTION

## Is Alfie a registered specialty vape store?

Confirm this before writing another line. Almost everything the current site does — showing forty flavours, naming them, listing prices — is only lawful for a **registered specialty vape store**. If Alfie is a general retailer, most of the catalogue cannot legally be on his shelves, let alone on a web page.

### The 85% test SFOA · 0. Reg. 268/18

Vapour products must be at least 85% of total sales in the previous year, or of inventory purchases for a business under a year old. The remaining 15% may only be vape-adjacent goods or branded merchandise — snacks, candy and drinks disqualify you.

**Website impact:** a Chartered Professional Accountant must certify the percentage on the application. Register with the Simcoe Muskoka District Health Unit, not directly with the province.

### Flavours are gated on that registration SFOA

Flavoured vapour products other than tobacco, mint and menthol may only be sold in specialty vape stores and licensed cannabis retail stores. So may products above 20 mg/mL — which is moot federally, since 20 mg/mL is the national ceiling anyway.

**Website impact:** the entire fruit, dessert and drinks catalogue in `src/data/flavours.ts` depends on this registration existing.

### Premises conditions SFOA

Inside a building, customers entering from outdoors or a mall common area, no under-19s admitted at all (staff and disability support persons aged 19+ excepted), not a thoroughfare, and interior displays invisible from outside.

**Website impact:** the `/visit` page must not invite anyone under 19 in, and any storefront or interior photography must not show a display readable from the street.

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FEDERAL · TVPA

## What the site may never say or show

These are the promotion prohibitions in Division 2 of the TVPA. They bind "no person" — retailers, web developers and social-media posters included, not just manufacturers.

### No youth appeal s. 30.1

No advertising where there are reasonable grounds to believe it *could be* appealing to young persons. The test is potential appeal, judged by the regulator.

**Watch:** saturated colour walls, playful naming, cartoon or sticker aesthetics, anything that reads as candy or toy.

### No lifestyle advertising s. 30.2

Nothing associating the product with glamour, recreation, excitement, vitality, risk or daring, or with a way of life.

**Watch:** ambient brand photography, aspirational copy, "for the ride" register. Sell stock and hours, not a feeling.

### No testimonials or endorsements s. 30.21

Prohibited however displayed or communicated. A depiction of any person, character or animal counts as one automatically.

**Do not build:** customer reviews, star ratings, an embedded Google Reviews widget, a testimonials strip, staff photos, or `aggregateRating` in structured data.

### No health-benefit or comparative claims s. 30.43

Nothing that could cause a person to believe health benefits flow from using the product, and no comparison of its health effects against those of tobacco.

**Do not write:** "safer than smoking", "a cleaner alternative", "helps you quit", "95% less harmful". Positioning the shop as a cessation service is out.

### Nothing that discourages quitting tobacco s. 30.44

Promotion is prohibited where there are reasonable grounds to believe it could discourage tobacco cessation or encourage a return to tobacco.

### Nothing false, misleading, or creating an erroneous impression s. 30.42(1)(a)

Covers characteristics, health effects and emissions — including via packaging imagery.

**Directly relevant:** product renders whose printed nicotine strength contradicts the stock on the shelf, and prices that are placeholders. See findings below.

### Five flavour families cannot be promoted at all s. 30.48 · Schedule 3

No indication or illustration — brand elements included — that could cause a person to believe a vaping product has a **confectionery, dessert, cannabis, soft drink or energy drink** flavour.

**Directly relevant:** the current build ships `profile: "dessert"` and `profile: "beverage"` as browsable facets, labelled "Dessert" and "Drinks", carrying Cola, Energy, Cheesecake, Cookie, Chocolate, Caramel and Vanilla Custard. This is the site's clearest single exposure.

### Nine ingredient claims are prohibited s. 30.47 · Schedule 2

No indication that a vaping substance contains amino acids, caffeine, colouring agents, essential fatty acids, glucuronolactone, probiotics, taurine, vitamins or mineral nutrients.

### No sponsorship, no branded giveaways, no promotional consideration

s. 30.3 · 30.4 · 30.5 · 30.6

No association between the brand and a person, entity, event, activity or facility; no branded merchandise furnished where it could appeal to young persons; and limits on offering anything of value as an inducement.

**Do not build:** contests, giveaways, loyalty points shown publicly, referral rewards, "sponsored by Alfie's" anything, or a discount-code banner.

## The health warning is a typographic specification, not a sentence

Every vaping advertisement other than a bare availability-and-price sign must carry a prescribed health warning, and the *Vaping Products Promotion Regulations* prescribe its wording, size, colour, typeface and attribution. Getting the words right but the format wrong is still non-compliance.

**WARNING:** Vaping products contain nicotine, a highly addictive chemical.

Health Canada

One of the two prescribed advertising warnings, shown in its required register. Rendered black-on-white in both themes because the regulation fixes the colour — it is not a dark-mode bug.

### The two permitted warnings, verbatim

- WARNING: Vaping products contain nicotine, a highly addictive chemical.
- WARNING: Vaping products release chemicals that may harm your health.

Note the difference from the *packaging* warning, which reads "WARNING: Nicotine is highly addictive." The current build's string is a blend of the two and matches neither. It must be one of the advertising warnings, exactly.

### Format requirements for a visual advertisement

- The required information occupies at least **20%** of the surface visible at first sight, measured from the top edge down. [s. 14](#)
- It sits inside a **rectangular border** of uniform width equal to 3% of the shortest side. [s. 17\(2\)](#)
- The warning itself takes **60–70%** of that display area. [s. 19](#)
- **Black on white or white on black**, standard sans serif, not compressed, expanded or decorative; the first word upper case and bold. [s. 21](#)
- Attributed to **Health Canada** (*Santé Canada* in French). [s. 22](#)
- In advertising delivered by telecommunication, the required information appears **at the beginning** and must not be obscured. [s. 24–30](#)

A one-line band at the top of the page — the current implementation — does not meet 20% of first-sight surface, has no border, no attribution, and is not black-on-white. If this site is an advertisement, and a priced product catalogue almost certainly is, the band needs rebuilding as a compliant block above the fold.

### **Is a retailer's own website "advertising"?**

Assume yes. "Advertisement" is defined broadly enough to catch any representation about a product made to influence attitudes or behaviour. A page listing brands, flavours and prices is squarely inside it, and the footer line saying the site does not sell online does not exempt it. Health Canada's own guidance treats online stores as points of sale.

## A "Yes, I'm 19+" button is explicitly not enough

The VPPR prohibits displaying vaping products or their packaging in a manner that allows them to be seen by young persons, and Health Canada applies that to websites: reasonable steps must be taken to ensure a visitor's age is *diligently verified before they can see vaping products and their packaging*.

### Health Canada, on the record

"Simply requiring visitors to 'check the box' to attest of their age or to self-declare about their date of birth or age on a website or social media page before they can access the advertising would not be considered sufficient."

Regulatory Impact Analysis Statement, *Vaping Products Promotion Regulations*, Canada Gazette Part II, 8 July 2020.

This is interpretive guidance rather than a numbered clause in the regulation, so there is some room to argue. There is far less room on the second problem, which is purely technical: the current gate is an overlay rendered client-side on top of a fully-served page. The product HTML goes over the wire regardless. View-source, JavaScript disabled, a crawler, a reader-mode extension, or a direct link to `/product/[slug]` all reach the catalogue without touching the gate.

### What to build instead

- **Gate on the server.** Set an HTTP-only cookie on confirmation and have middleware rewrite un-gated requests to the gate route, so unverified visitors are never sent product markup at all.
- **Collect a date of birth**, not a yes/no — it is the minimum defensible step above a check-box, and it costs nothing.
- **Price a third-party verification provider** and put the decision in writing to Alfie. Several Ontario retailers use ID-plus-selfie services. It is his risk to accept; your job is to make sure he accepts it knowingly.
- **Keep marketing surfaces clean.** The meta description, OG image and any structured data render in Google and social previews, outside the gate entirely. They must not name or show products.

## Age, ID and the signage the shop must post

### 19, and ID for anyone who looks under 25

Government-issued photo ID showing date of birth. The build already uses 19 correctly — a common bug is inheriting 18 or 21 from US-oriented boilerplate.

### Mandatory in-store signs

An identification notice at each point of sale, a "25 and under" notice, and No Smoking / No Vaping signs at every entrance, exit and washroom. Ontario prescribes both the wording and the dimensions; the health unit supplies the templates.

**Website impact:** none directly, but mirroring the age and ID notice on the site is good practice — and get the exact current artwork from SMDHU rather than typesetting your own.

### Staff training records

SMDHU requires an education binder on premises and a signed sign-off from every staff member who sells vapour products. Missing sign-offs can put the charge on the business rather than the individual after a failed test shop.

### Test shopping is routine

Health unit tobacco enforcement officers inspect display and sales compliance and run test shops. Convictions for selling to a minor can trigger an automatic prohibition on selling at that location — six to twelve months depending on the count — with a mandated sign saying so.

### Sampling, if offered

Permitted only inside a registered specialty vape store, with a fresh disposable mouthpiece, no more than two people at once, and nothing containing cannabis, tobacco or a controlled substance.

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BARRIE & SIMCOE MUSKOKA

## What is specific to this city

Barrie has no vape-specific by-law that changes what the website may say. The local layer is administrative — but it is the layer that actually shows up at the door.

- **SMDHU is the registrar and the enforcer.** Specialty vape store registration, the CPA-certified 85% form, retailer guides, test shop notifications and inspections all run through the health unit. Health Connection: 705-721-7520 / 1-877-721-7520.
- **City of Barrie business licence.** Check whether the shop's category requires one under the Business Licensing (General) By-law, and note that a licence is not issued until all approvals, inspections and taxes are cleared.
- **Zoning is unusually live right now.** Barrie has been tightening its zoning by-law specifically to stop unlawful uses trading under a general retail designation, and a new comprehensive by-law is in progress with updates expected through 2026. Confirm the address is properly zoned before the site advertises it.
- **Barrie's Smoking By-law** governs where vaping is prohibited on municipal property. Relevant to the shop, not to the site.
- **Sign permits.** Exterior signage is a municipal permit matter on top of the SFOA visibility rule. Worth confirming before the storefront treatment is designed.

CURRENT BUILD

## Findings against the code as it stands

| WHERE                            | ISSUE                                                                                                                                                                                                                                                                                                                                                                             | AUTHORITY                        | PRIORITY |
|----------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------|----------|
| AgeGate.tsx                      | Self-declared yes/no button, stored in <code>localStorage</code> , applied client-side over fully-served product HTML. Health Canada has said in terms that a check-box attestation is insufficient — and the gate is bypassable regardless.                                                                                                                                      | VPPR s. 3–5<br>+ RIAS            | CRITICAL |
| flavours.ts<br>types.ts          | <code>PROFILE_LABELS</code> exposes "Dessert" and "Drinks" as browse facets over Cola, Energy, Cheesecake, Cookie, Chocolate, Caramel, Vanilla Custard, Lemonade, Iced Tea, Mojito and Piña Colada. Promoting a soft drink, energy drink, dessert or confectionery flavour is prohibited outright, and the site is doing the promoting even where the name is the manufacturer's. | TVPA s.<br>30.48 · Sch. 3        | CRITICAL |
| store.ts                         | <code>LEGAL.warning</code> reads "Vaping products contain nicotine. Nicotine is highly addictive." — a blend of the packaging warning and the advertising warning that matches neither prescribed text.                                                                                                                                                                           | VPPR s. 8 +<br>warning list      | CRITICAL |
| SiteHeader.tsx<br>SiteFooter.tsx | Warning band is a single small line: under 20% of first-sight surface, no rectangular border, no Health Canada attribution, and light-on-dark rather than the prescribed black-on-white or white-on-black.                                                                                                                                                                        | VPPR s. 14,<br>17, 19, 21,<br>22 | CRITICAL |
| generated.ts                     | OXBAR OXHUKKA artwork prints 20 mg/mL while the shelf spec is 6 mg/mL. Already flagged as <code>imageCaution</code> , but shipping the image at all risks creating an erroneous impression about a product characteristic.                                                                                                                                                        | TVPA s.<br>30.42(1)(a)           | HIGH     |
| layout.tsx                       | Meta description advertises "Disposables, pod kits and e-liquid in stock" and renders in search results, entirely outside the age gate. Add an OG image and it is a product advertisement visible to anyone.                                                                                                                                                                      | VPPR s. 2                        | HIGH     |
| ChipWall.tsx<br>flavours.ts      | A forty-swatch wall of saturated colour keyed to flavour names is the strongest youth-appeal signal on the site. Defensible as a paint-chip reference; hard to defend if it is also the hero.                                                                                                                                                                                     | TVPA s. 30.1                     | HIGH     |

| WHERE                   | ISSUE                                                                                                                                                                                                                                                                                                                                                                                                                       | AUTHORITY            | PRIORITY |
|-------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------|----------|
| generated.ts            | Eleven images are typed <code>imageKind: "lifestyle"</code> . In this codebase that means "brand art without a retail box", which is <i>not</i> lifestyle advertising — but the word is a statutory term of art for something prohibited under s. 30.2. Rename it ( <code>"bare-device"</code> ) so nobody reading the repo under inspection draws the wrong conclusion, and confirm the VEEV art is a plain device render. | TVPA s. 30.2         | HIGH     |
| generated.ts            | Lines with no legible shelf tag currently price at 0. A displayed price must be the real one; a wrong price in an advertisement is a misleading representation under both the TVPA and Ontario consumer law.                                                                                                                                                                                                                | TVPA s. 30.42 · CPA  | HIGH     |
| store.ts                | Phone, address, postal code and email are all placeholders. Ship-blocking on its own terms, and the address determines which health unit and which zoning apply.                                                                                                                                                                                                                                                            | —                    | BLOCKER  |
| site-wide               | No privacy policy and no cookie/analytics consent surface. PIPEDA applies to any commercial site collecting personal information, and an age gate that records a date of birth is collecting some.                                                                                                                                                                                                                          | PIPEDA               | MEDIUM   |
| site-wide               | No testimonials, reviews, ratings, people or health claims anywhere in the build. Correct — and worth a comment in the codebase so it stays that way.                                                                                                                                                                                                                                                                       | TVPA s. 30.21, 30.43 | CLEAR    |
| store.ts<br>products.ts | Minimum age set to 19, nicotine documented as capped at 20 mg/mL with the regulation cited. Both correct.                                                                                                                                                                                                                                                                                                                   | SFOA · SOR/2021-123  | CLEAR    |

## ADJACENT LAW

# The obligations that have nothing to do with vaping

## PIPEDA — privacy

A privacy policy, a stated purpose for collection, meaningful consent for analytics and any third-party pixel, and a named contact. Age-gate dates of birth and ID-verification data are personal information; decide deliberately whether you retain them, and prefer not to.

## CASL — email and SMS

Express or clearly documented implied consent before any commercial message, full sender identification, and a working unsubscribe honoured within ten business days. Note that a newsletter promoting vaping products also has to satisfy the VPPR — which effectively means addressing it to a named, age-verified adult.

### Excise stamps

Ontario joined the coordinated vaping duty system on 1 July 2024; since 1 October 2024 every vaping product sold in Ontario must carry the Ontario-specific excise stamp. If product photography shows unstamped or out-of-province packaging, replace it.

### Consumer protection, if online sales are ever added

Ontario's rules for internet agreements require prescribed disclosure before the consumer agrees, delivery of a copy of the agreement, and cancellation rights if disclosure is missed. The *Consumer Protection Act, 2023* received Royal Assent but is not yet proclaimed in force; build against the current Act and watch for the regulations.

### AODA accessibility

WCAG 2.0 Level AA is mandatory for private organisations with 50+ employees — almost certainly not Alfie. At 20+ employees an accessibility compliance report is still due every three years. Build to AA regardless: the effort is small at this size and the alternative ages badly.

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## ON THE HORIZON

# What could change, and how much to weight it

### Bill 125 — Smoke-Free Ontario Amendment Act (Vaping is not for Kids), 2026

Ordered for second reading, 26 May 2026. Would raise the minimum age to 21, restrict sales to specialty vape stores, **ban online sales outright**, permit only tobacco flavouring, and prohibit promotion of vapour products entirely. In force 120 days after Royal Assent.

It is an opposition private member's bill, and private members' bills rarely reach Royal Assent — do not architect around it. But it is the fourth iteration of the same bill across three parliaments, which tells you where the policy pressure sits. Concretely: **do not build an e-commerce checkout on the assumption online sales are permanently safe.**

Federally, Health Canada has consulted on restricting vaping flavours to tobacco, mint and menthol and on expanding Schedule 3. Neither is in force as of August 2026. Keep the flavour taxonomy data-driven — as it already is — so an expanded schedule is a config change rather than a rebuild.

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## BEFORE LAUNCH

## The order to do it in

- ☐ **Confirm the specialty vape store registration** with SMDHU. Everything else is contingent on it. Get the registration number in writing.

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- ☐ **Replace the warning string** with one of the two prescribed advertising warnings, verbatim.

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- ☐ **Rebuild the warning block** to the VPPR format: bordered, black-on-white, first word bold caps, Health Canada attribution, 20% of first-sight surface.

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- ☐ **Move the age gate server-side** with an HTTP-only cookie and middleware, and take a date of birth rather than a yes/no.

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- ☐ **Retire the Dessert and Drinks facets** and review every flavour name against Schedule 3.

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- ☐ **Strip product language from meta descriptions and OG tags**, which render outside the gate.

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- ☐ **Fix every zero price** and pull the OXBAR renders whose printed strength contradicts the shelf.

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- ☐ **Rename `imageKind: "lifestyle"`** so the repo does not appear to describe prohibited advertising.

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- ☐ **Add a privacy policy** and decide what the age gate retains.

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- ☐ **Have SMDHU look at the staging site.** Tobacco enforcement officers advise as well as inspect, and a pre-launch read from the people who will enforce it is worth more than any opinion in this document.

### SOURCES

[Tobacco and Vaping Products Act, SC 1997 c. 13 — full text](#)

[Vaping Products Promotion Regulations, SOR/2020-143](#)

[Canada Gazette Part II — VPPR and Regulatory Impact Analysis Statement](#)

[List of Health Warnings for Vaping Product Advertising — Health Canada](#)

[Vaping Products Labelling and Packaging Regulations, SOR/2019-353](#)

[Nicotine Concentration in Vaping Products Regulations, SOR/2021-123](#)

[Vaping products regulations — Health Canada overview](#)

[Vaping compliance and enforcement — Health Canada](#)

[Rules for selling tobacco and vapour products — Government of Ontario](#)

[Guidelines for registration of a specialty vape store — Government of Ontario](#)

[Specialty vape stores — Simcoe Muskoka District Health Unit](#)

[Retail sales under the Smoke-Free Ontario Act, 2017 — SMDHU](#)

Bill 125, Smoke-Free Ontario Amendment Act (Vaping is not for Kids), 2026

Business Licensing (General) By-law — City of Barrie

Zoning By-law — City of Barrie

EDN80 — Overview of vaping excise stamps, CRA

Advertising of Vaping Products — Ad Standards

Prepared as development guidance, not legal advice. Statutory text and regulatory guidance were current in August 2026; vaping law in Canada moves quickly at all three levels. Before launch, confirm the specialty vape store registration and have the Simcoe Muskoka District Health Unit review the staging site, and have a lawyer review anything commercially significant.